

LAWS OF MALAYSIA

Act 155

IMMIGRATION ACT, 1959/63

(Revised—1975)

Revised up to	31st December, 1974
Date appointed for coming into force	1st May, 1975
Date of publication in *Gazette* ...	10th April, 1975

Consolidates—

(*a*) Ordinance No. 12 of 1959 enacted in 1959 (reprinted in 1963);

(*b*) Act No. 27 of 1963 enacted in 1963 (reprinted in 1963); and

(*c*) Paragraphs 3 and 4 of the Immigration (Transitional Provisions) Order, 1963 (F.L.N. 226/1963).

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Please refer to Reprint 2006

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LAWS OF MALAYSIA

Act 155

IMMIGRATION ACT, 1959/63*

(Revised—1975)

An Act relating to immigration.

[*West Malaysia—1st May, 1959;*
East Malaysia—16th September, 1963.]

PART I

PRELIMINARY

Short title and application.

1. (1) This Act may be cited as the Immigration Act, 1959-1963.

(2) This Act applies throughout Malaysia subject to Part VII.

Interpretation.

2. (1) In this Act, unless the context otherwise requires—

"authorized airport", "authorized landing place" and "authorized point of entry" mean respectively an airport, a landing place or a point of entry declared as such under section 5 (1);

"captain" means any person having for the time being control or charge of an aircraft;

"Certificate" means any Certificate of Status issued under any regulations made under this Act;

"crew" includes every seaman on a vessel, and every person employed in the operation of an aircraft or in any service rendered to the crew or passengers of the aircraft while in flight;

"Director General" means the Director General of Immigration appointed under section 3;

"entry" means—

(*a*) in the case of a person arriving by sea, disembarking in Malaysia from the vessel in which he arrives;

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* For particulars of the various laws consolidated *see* page 2. The section numbers in this revised Act correspond to those in the Immigration Ordinance, No. 12 of 1959. Where the section numbers differ, the numbers in the earlier law are given within square brackets at the end of sections.

(*b*) in the case of a person arriving by air at an authorized airport, leaving the precincts of the airport;

(*c*) in the case of a person entering by land and proceeding to an immigration control post in accordance with section 26, leaving the precincts of the post for any purpose other than that of departing from Malaysia by an approved route; and

(*d*) in any other case, any entry into Malaysia by land, sea or air:

Provided that it shall not include in any case an entry made for the purpose of complying with this Act or an entry expressly or impliedly sanctioned by an immigration officer for the purpose of any enquiry or detention under this Act;

"Entry Permit" means a Permit to enter ~~or~~ and remain in Malaysia issued under section 10;

"immigration control post" means a post established as such by the Director General at a place declared to be an immigration control post under section 5 (1);

"immigration depôt" means any place designated by the Director General for the examination, inspection, or detention of persons under this Act;

"immigration officer" means any person appointed under section 3;

"immigration signal" means such signal as may be prescribed for vessels which arrive in Malaysia;

"master" means any person (except a pilot or Harbour Master) having for the time being control or charge of a vessel;

"Pass" means any Pass issued under any regulations made under this Act entitling the holder thereof to enter and remain temporarily in Malaysia;

"passenger" means any person carried in a vessel or aircraft, other than the members of the crew;

"Permit" includes an Entry Permit ~~and a Re-entry Permit~~;

F.M. 70/52, Sabah 11/60, Swk. 2/60.

"Port Officer" includes a Harbour Master appointed under the Merchant Shipping Ordinance and any person lawfully acting for him;

"prescribed" means prescribed by regulations made under this Act;

"prohibited immigrant" means a person declared to be a prohibited immigrant under section 8;

"Re-entry Permit" means a Permit to re-enter Malaysia issued under section 11; d/AA985

"seaman" includes the master and any person carried in a vessel as a bona fide member of the staff employed in the operation or service of the vessel and, if the vessel has articles, entered on those articles;

"senior immigration officer" means any person appointed under ~~section 3 of or above the rank of Deputy Assistant Director of Immigration;~~ section 3(1) and (1A) AA985

"senior police officer" has the meaning assigned thereto in the Police Act, 1967; *41/67.*

"stowaway" means a person who goes to sea secreted in a vessel without the consent of the master or other person in charge of the vessel or of a person entitled to give the consent and includes a person arriving in Malaysia on board any aircraft who is on board without the consent of the captain or of a person entitled to give the consent;

"through passenger" means any passenger who arrives in Malaysia by a vessel or aircraft and who is continuing his journey in the same vessel or aircraft to a place outside Malaysia;

"transportation company" means any government, municipality, body corporate, or organisation, firm or person carrying or providing for the transit of passengers, whether by vessel, aircraft, railway, highway or otherwise, and includes any two or more such transportation companies co-operating in the business of carrying passengers; ← AA719

"vehicle"---

"vessel" includes any ship or boat or other description of floating craft used in navigation, and includes any tackle, equipment, book, document, goods, cargo or things carried therein or thereon.

(2) For the purposes of this Act a person travelling between two places in Malaysia without entering any territory outside Malaysia shall not be treated as leaving, entering or arriving in Malaysia because in so doing he passes out of and returns into Malaysia.

(3)--- ← AA719

Subs. by AA985

Appointment and powers of Director General and others.

3. (1) The Yang di-Pertuan Agong may appoint a Director General of Immigration, a Deputy Director General of Immigration and so many Directors of Immigration to be stationed in and to act for different parts of Malaysia, and so many Deputy Directors, Principal Assistant Directors, Senior Assistant Directors, Assistant Directors and Deputy Assistant Directors of Immigration and other officers as he may consider necessary for the proper carrying out of this Act.

AA985 → (1A)---

(2) The Director General shall have the general supervision and direction of all matters relating to immigration throughout Malaysia.

(3) The powers and discretions vested in the Director General by this Act, and the duties required to be discharged by him may, subject to section 4 and to such limitations as may be prescribed, be exercised and discharged by—

Subs. by AA985

(*a*) the Deputy Director General of Immigration, a Director of Immigration or a Deputy Director of Immigration; and

AA985

(*b*) any ~~Principal Assistant Director of Immigration, Senior Assistant Director of Immigration, Assistant Director of Immigration or Deputy Assistant Director of Immigration~~ authorized in writing in that behalf by the Director General.

Power of Minister to issue directions.

4. The Minister may from time to time give the Director General directions of a general character not inconsistent with this Act as to the exercise of the powers and discretions conferred on the Director General by, and the duties required to be discharged by the Director General under, this Act in relation to all matters which appear to him to affect the immigration policy of Malaysia, and the Director General shall give effect to all such directions.

PART II

ADMISSION INTO AND DEPARTURE FROM MALAYSIA

Entry into or departure from Malaysia.

5. (1) The Minister may, by notification in the *Gazette*, prescribe approved routes and declare such immigration control posts, landing places, airports or points of entry, as he may consider to be necessary for the purposes of this Act, to be immigration control posts, authorized landing

places, authorized airports or authorized points of entry, as the case may be, and no person shall, unless compelled by accident or other reasonable cause, enter or leave Malaysia except at an authorized landing place, airport or point of entry.

(2) Any person who contravenes subsection (1) shall be guilty of an offence against this Act.

Control of entry into Malaysia.

6. (1) No person other than a citizen shall enter Malaysia unless—

(*a*) he is in possession of a valid Entry Permit ~~or Re-entry Permit~~ lawfully issued to him under section 10 ~~or 11~~;

(*b*) his name is endorsed upon a valid Entry Permit ~~or Re-entry Permit~~ in accordance with section 12, and he is in the company of the holder of the Permit;

(*c*) he is in possession of a valid Pass lawfully issued to him to enter Malaysia; or

(*d*) he is exempted from this section by an order made under section 55.

(2) (*Repealed*).

~~(3) Any person who contravenes subsection (1) shall be guilty of an offence against this Act.~~ (4)---

Right of entry.

7. (1) (*a*) A citizen shall be entitled to enter Malaysia without having obtained a Permit or Pass in that behalf under this Act.

(*b*) (*Repealed*).

(2) (*Repealed*).

(3) The burden of proof that any person is a citizen shall lie upon that person.

Prohibited immigrants.

8. (1) Any person who, in the opinion of the Director General—

(*a*) is a member of any of the prohibited classes as defined in subsection (3) and is not a citizen is a prohibited immigrant.

(*b*) (*Repealed*).

(2) Subject to any exemption granted under section 55—

(*a*) no prohibited immigrant who is a member of the prohibited class defined in subsection (3) (*o*) shall enter Malaysia; and

(*b*) no other prohibited immigrant shall enter Malaysia, unless he is in possession of a valid Pass in that behalf issuable to a prohibited immigrant under any regulations made under this Act.

(3) The following persons are members of the prohibited classes:

(*a*) any person who is unable to show that he has the means of supporting himself and his dependants (if any) or that he has definite employment awaiting him, or who is likely to become a pauper or a charge on the public;

(*b*) any person suffering from mental disorder or being a mental defective, or suffering from a contagious or infectious disease which makes his presence in Malaysia dangerous to the community;

(*c*) any person who refuses to submit to a medical examination after being required to do so under section ~~29~~;

(*d*) any person who—

(i) has been convicted in any country or state of any offence and sentenced to imprisonment for any term, and has not received a free pardon; and

(ii) by reason of the circumstances connected with the conviction is deemed by the Director General to be an undesirable immigrant;

(*e*) any prostitute, or any person, who is living on or receiving, or who, prior to entering Malaysia, lived on or received, the proceeds of prostitution;

(*f*) any person who procures or attempts to bring into Malaysia prostitutes or women or girls for the purpose of prostitution or other immoral purpose;

(*g*) vagrants and habitual beggars;

(*h*) any person whose entry into Malaysia is, or at the time of his entry was, unlawful under this or any other written law for the time being in force;

(*i*) any person who believes in or advocates the overthrow by force or violence of any Government in Malaysia or of any established government or of constituted law or authority or who disbelieves in or is opposed to established government, or who advocates the assassination of public officials, or who advocates or teaches the unlawful destruction of property;

(*j*) any person who is a member of or affiliated with any organisation entertaining or teaching disbelief in or opposition to established government or advocating or teaching the duty, necessity or propriety of the unlawful assaulting or killing of any officer or officers, either of specific individuals or officers generally, of any Government in Malaysia or of any established government, because of his or their official character, or advocating or teaching the unlawful destruction of property;

(*k*) any person who, in consequence of information received from any source deemed by the Minister* to be reliable, or from any government, through official or diplomatic channels, is deemed by the Minister* to be an undesirable immigrant;

(*l*) any person who has been removed from any country or state by the government of that country or state on repatriation for any reason whatever and who, by reason of the circumstances connected therewith, is deemed by the Director General to be an undesirable immigrant;

(*m*) any person who, being required by any written law for the time being in force to be in possession of valid travel documents, is not in possession of those documents or is in possession of forged or altered travel documents or travel documents which do not fully comply with any such written law;

(*n*) the family and dependants of a prohibited immigrant; and

(*o*) any person prohibited by order made under section 9 from entering Malaysia.

(4) The burden of proof that any person seeking to enter Malaysia is not a prohibited immigrant shall lie upon that person.

(5) Subject to any exemption granted under section 55, if any prohibited immigrant enters Malaysia otherwise than in accordance with a valid Pass lawfully issued to him he shall be guilty of an offence against this Act.

(6) ~~Any~~ person in possession of a Permit issued to him under this Act who, upon his arrival in Malaysia, is refused permission to enter upon the ground that he is a prohibited

* For exercise of powers of Minister in respect of persons in an East Malaysian State by the federal secretary or by any person in the State being a member of the public services so authorized to do *see* para 6 (2) (*a*) and (6), Immigration (Transitional Provisions) Order, 1963 (F.L.N. 226/63).

immigrant, may appeal against the refusal within such time and in such manner as may be prescribed, to the Minister*, whose decision shall be final:

Provided that, notwithstanding sections 24 and 26, any person who appeals against such refusal shall be permitted to disembark and shall be detained in an immigration depôt pending the determination of his appeal, unless released on a Pass issued at the discretion of the Director General on such conditions as to furnishing security or otherwise as the Director General may deem fit.

Power to prohibit or limit entry into Malaysia.

9. (1) The Minister may, by order—

(*a*) where he deems it expedient to do so in the interests of public security or by reason of any economic, industrial, social, educational or other conditions in Malaysia—

(i) prohibit, either for a stated period or permanently, the entry or re-entry into Malaysia of any person or class of persons;

(ii) limit the number of persons of any class who may enter Malaysia within any period specified in the order; or

(iii) limit the period during which any person or class of persons entering or re-entering Malaysia may remain therein; or

(*b*) prohibit the entry into Malaysia of passengers brought to Malaysia by any transportation company which refuses or neglects to comply with this Act:

Provided always that no order made under paragraph (*a*), except an order made in the interests of public security, shall apply to any person outside Malaysia at the time when the order is made and who is in possession of a valid Re-entry Permit lawfully issued to him.

(2) An order under subsection (1) shall not apply to any citizen or to any person seeking to enter Malaysia under and in accordance with any Pass lawfully issued to that person.

(3) (*a*) Every order made under subsection (1) (*a*) which relates to a class of persons, except an order made in the interests of public security, shall be laid before the Dewan Ra'ayat as soon as possible after publication. If a resolution

* For an appeal from a person in an East Malaysian State in certain circumstances *see* para 6 (1) (*a*), (5) and (6), Immigration (Transitional Provisions) Order, 1963 (F.L.N. 226/63).

of the Dewan Ra'ayat is passed within the next subsequent three months after any such order is laid before it disapproving the order or any part thereof, the whole order or such part thereof, as the case may be, shall thenceforth cease to have effect but without prejudice to the validity of anything previously done thereunder.

(*b*) Every order made under subsection (1) shall, unless otherwise expressed therein, come into force on the date of the making thereof, and shall be published in the *Gazette*.

(4) Any person who enters or re-enters or remains in Malaysia in contravention of any order made under subsection (1) shall be guilty of an offence against this Act.

PART III

ENTRY ~~AND RE-ENTRY~~ PERMITS

Entry Permits.

10. (1) Any person seeking to enter Malaysia who is not entitled so to enter as a citizen or by virtue of a valid Pass to enter Malaysia issued to him or seeking to remain in Malaysia after the expiry of such a Pass may make application in that behalf in the manner prescribed to the Director General or to such other person whether within or outside Malaysia as the Director General may, from time to time, appoint for the purpose.

(2) Upon application made under subsection (1) and upon payment of the prescribed fees the Director General may issue to the applicant an Entry Permit in the prescribed form and shall, if the applicant is required by any written law relating to passports for the time being in force in Malaysia to have a visa to enter Malaysia, issue a visa to the applicant on the production by him of his passport or other travel document and on payment of the fee prescribed by the written law and the visa shall remain valid until the expiry or cancellation of the Entry Permit issued to him.

(3) Any person aggrieved by the refusal of the Director General to issue to him an Entry Permit under subsection (2) may within thirty days of the notification of the refusal to him appeal by petition in writing to the Minister*, whose decision thereon shall be final.

Re-entry Permits.

11. (1) Any person lawfully resident in Malaysia not being—

(*a*) the holder of a valid Pass; or

(*b*) (*Repealed*);

(*c*) a citizen,

* *See* Footnote on page 14.

who seeks to leave Malaysia temporarily, or within ~~one month~~ of so leaving Malaysia, may make application to the Director General in the prescribed manner for the issue to him of a Re-entry Permit authorizing him to re-enter Malaysia.

(2) Upon application being made under subsection (1) and upon payment of the prescribed fees, the Director General may issue to the applicant a Re-entry Permit in the prescribed form and shall, if the applicant is required by any written law relating to passports for the time being in force in Malaysia to have a visa to enter Malaysia, issue a visa to the applicant on the production by him of his passport or other travel document and on payment of the fee prescribed by the written law and the visa shall remain valid until the expiry or cancellation of the Re-entry Permit issued to him.

(3) Any person aggrieved by the refusal of the Director General to issue to him a Re-entry Permit under this section, may within thirty days of the notification of the refusal to him appeal by petition in writing to the Minister*, whose decision thereon shall be final.

Endorsement of name of wife and children on Permits, Passes and Certificates.

12. Subject to such conditions as may be prescribed it shall be lawful for the Director General, on application made in that behalf in the prescribed form by the holder of, or by an applicant for, a Permit, Pass or Certificate, to endorse upon the Permit, Pass or Certificate issued to the person the name or names of the wife or child of that person.

Power to make inquiries.

13. The Director General may before the issue of a Permit, Pass or Certificate under this Act or before making any endorsement thereon under section 12 make such inquiries or require the production of such evidence as he may think fit in order to satisfy himself as to the truth of any statement made in the application for the Permit, Pass or Certificate.

Cancellation of, and declarations regarding, Permits and Certificates.

14. (1) Where the holder of any Permit seeks to enter Malaysia accompanied by any child whose name is not endorsed upon the Permit under section 12 and who is not otherwise entitled to enter Malaysia under this Act, the Director General may cancel the Permit issued to that person.

(2) Where, upon the arrival in Malaysia of any person to whom a Permit or Certificate has been issued, the Director General is satisfied, as a result of inquiries made under section 24 or 26, or from other information, that

* *See* Footnote on page 14.

the Permit or Certificate was issued as a result of any false representation or concealment of a material fact the Director General may cancel the Permit or Certificate.

(3) Where at any time, during the period of validity of any Permit or Certificate, the Director General is satisfied that the holder of the Permit or Certificate is a prohibited immigrant, the Director General shall cancel the Permit or Certificate.

(4) Where any person has entered Malaysia by virtue of a Permit or Certificate, and the Director General is satisfied—

(*a*) that any material statement made in or in connection with the application for that Permit or Certificate was false or misleading; or

(*b*) that the person is a prohibited immigrant,

the Director General may declare at any time after the date of the entry, that the presence of that person in Malaysia is unlawful.

(5) On making any cancellation under subsection (2) or (3) or on making any declaration under subsection (4) the Director General shall, by notification, which, if the address of the person is known shall be sent to him at that address and otherwise shall be published in such manner as the Director General deems fit, inform the person affected thereby of the grounds on which the cancellation or declaration has been made and the person may appeal against the cancellation or declaration, as the case may be, within such time and in such manner as may be prescribed, to the Minister*, whose decision shall be final.

Unlawful entry or presence in Malaysia.

15. (1) A person shall not remain in Malaysia after the cancellation of any Permit or Certificate, or after the making of a declaration under section 14 (4) or after the expiration or notification to him, in such manner as may be prescribed, of the cancellation of any Pass, relating to or issued to him unless he is otherwise entitled or authorized to remain in Malaysia under this Act.

(2) A person shall not remain in Malaysia in contravention of proviso (*a*) to section 60 or of article 8 (2) of the Immigration (Transitional Provisions) Order, 1963. *L.N. 226/63.*

(3) (*Repealed*).

(4) Any person who without reasonable cause contravenes this section ~~shall be guilty of an offence against this Act.~~

* *See* Footnote on page 14.

PART IV

PROCEDURE ON ARRIVAL IN MALAYSIA

Immigration signal.

16. (1) Subject to subsection (2) the master of every vessel which arrives in Malaysia shall hoist the prescribed immigration signal and shall exhibit the signal until authorized by an immigration officer to haul it down.

(2) Subsection (1) shall not apply to any vessel which plies solely between ports in Malaysia.

(3) The master of any vessel who contravenes or fails to comply with subsection (1) shall be guilty of an offence against this Act.

Vessel to proceed to Immigration Anchorage or other place ordered by immigration officer.

17. (1) The Director General may, by notification in the *Gazette*, declare any place within the limits of any port to be an Immigration Anchorage, either for vessels generally or for vessels of a class specified in the notification, and the master of any vessel which arrives at a port where an Immigration Anchorage, either for vessels generally or for vessels of a class to which that vessel belongs, has been declared shall, subject to any directions given under subsection (3), forthwith navigate his vessel to that anchorage and shall remain there until an immigration officer gives him permission to leave.

(2) No vessel carrying passengers, other than a vessel which plies solely between ports in Malaysia, shall proceed to any place in Malaysia other than a port within which an Immigration Anchorage has been declared under subsection (1).

(3) The master of every vessel which arrives in Malaysia shall, if so ordered by an immigration officer, anchor or tie up his vessel at such place as may be ordered, and shall remain there until an immigration officer gives him permission to leave.

(4) The master of any vessel who, without reasonable cause, contravenes or fails to comply with this section or any order made or direction given thereunder shall be guilty of an offence against this Act.

Aircraft arriving in Malaysia.

18. (1) The captain of every aircraft which arrives in Malaysia shall land his aircraft at an authorized airport.

(2) The captain of any aircraft who, without reasonable cause, contravenes or fails to comply with subsection (1) shall be guilty of an offence against this Act.

Persons not to board or leave vessel until examination completed.

19. (1) Save under and in accordance with any authority granted by an immigration officer, no person other than—

(*a*) the pilot;

(*b*) any Government officer boarding the vessel on duty;

(*c*) the owner, charterer, or agent of the vessel; or

(*d*) a consular officer of the country to which the vessel belongs,

shall leave or board a vessel arriving in Malaysia, nor may any person (other than the crew of a vessel carrying any such person) approach within one cable length of the vessel, until the vessel has been examined by an immigration officer and the immigration signal has been hauled down.

(2) Any person who contravenes subsection (1) shall be guilty of an offence against this Act and every such person leaving a vessel in contravention of subsection (1) shall if so required by an immigration officer return forthwith to the vessel and remain thereon and the master of the vessel shall be bound to re-embark the person.

Prohibition on disembarking from or boarding ships without permission of immigration officer.

20. (1) It shall be the duty of the master, and the owner or charterer, of every vessel which arrives in Malaysia to prevent any person other than a person specified in section 19 (1) from disembarking from or boarding any such vessel until the disembarkation or boarding has been authorized by an immigration officer, and for that purpose any means reasonably necessary may be used.

(2) Where any person disembarks from or boards any vessel before being authorized by an immigration officer in that behalf, that person, the master and the owner or charterer of the vessel shall each be guilty of an offence against this ~~section~~ Act and it shall be no defence to a prosecution that the master, owner, or charterer did not permit or do anything to facilitate the disembarkation or boarding of any such person, but it shall be a good defence that the master, owner, or charterer took every reasonable precaution to prevent such disembarkation or boarding. AA 719

(3) The master of the vessel from which any person has disembarked before disembarkation has been authorized by an immigration officer shall be bound to re-embark that person and any master refusing to re-embark the person shall be guilty of an offence against this ~~section~~ Act.

(4) Any person guilty of an offence against this Act shall, on conviction, be liable to a fine not exceeding four thousand dollars or to imprisonment for a term not exceeding one year or to both.

Prohibition of removal of articles before examination.

21. (1) Except with the authority of an immigration officer, no article or thing shall be removed or taken from, or put on board, any vessel until the vessel has been examined by an immigration officer under section 19.

(2) Any person who contravenes subsection (1) shall be guilty of an offence against this Act.

Production of certain lists and persons by masters of vessels and captains of aircraft.

22. (1) (*a*) The master of every vessel arriving in or leaving Malaysia shall, ~~whenever required to do so by an immigration officer~~—

(i) furnish to ~~the officer~~ a complete list of the members of the crew in such form and containing such particulars as may be prescribed;

(ii) produce to ~~the officer~~ for inspection and interrogation all the members of the crew;

(iii) furnish to ~~the officer~~ in triplicate identification cards of each member of the crew in such form as may be prescribed;

(iv) submit to such search of his vessel as may be necessary to establish the presence or absence of other persons on board;

(v) produce his ship's papers; ~~and~~

(vi) report the presence on board of any stowaway or any unauthorized person or any person proceeding to any state or country on his removal from any other state or country by the competent authorities of that state or country; and

(vii)...

(*b*) In the case of vessels carrying passengers the master shall, in addition, produce—

(i) a complete list of all the passengers in such form and containing such particulars as may be prescribed;

(ii) in relation to every passenger disembarking in Malaysia such particulars in such form as may be prescribed; and

(iii) all passengers for inspection and interrogation.

(2) The captain of every aircraft arriving in or leaving Malaysia shall ~~whenever required to do so by an immigration officer~~—

(*a*) produce a passenger list as prescribed under subsection (1) (*b*) (i) or in accordance with Annex 9 to the Convention on International Civil Aviation;

(*b*) produce in relation to every passenger landing in Malaysia such particulars in such form as may be prescribed;

(*c*) produce a complete list of the members of the crew of his aircraft as prescribed under subsection (1) (*a*) (i) or in accordance with Annex 9 to the Convention on International Civil Aviation;

(*d*) produce the members of the crew and passengers of the aircraft for inspection and interrogation as directed either generally or specifically by an immigration officer;

(*e*) submit to such search of his aircraft as may be necessary to establish the presence or absence of other persons on board; and

(*f*) report the presence on board of any stowaway or unauthorized person or any person proceeding to any state or country on his removal from any other state or country by the competent authorities of that state or country.

(3) The master of any vessel or the captain of any aircraft who contravenes or fails to comply with subsection (1) or (2), as the case may be, and any person who hinders or obstructs any search of a vessel or aircraft as aforesaid, shall be guilty of an offence against this Act.

(4) If any person is found on board a vessel or aircraft whose presence has not been reported as aforesaid, the master of the vessel or the captain of the aircraft, as the case may be, shall be guilty of an offence and shall, on conviction, be liable to a fine not exceeding one thousand ~~dollars~~ in respect of each such person.

(5) In any proceedings under this section the certificate in writing of an immigration officer who boarded or examined the vessel or aircraft to the effect that it carried on arrival in Malaysia a total number of crew corresponding in description to the particulars on the identification cards furnished under subsection (1) (*a*) (iii) or on the list produced

under subsection (2) (*c*) shall be conclusive proof that the vessel or aircraft did on arrival carry that number of crew.
[Ord. 12/59, s. 22 & 23]

23. (*Omitted*).

23A. (*Omitted*).

Examination of persons arriving by sea or at authorized airport.

24. (1) Every person arriving by sea or by air at an authorized airport in Malaysia shall, if required by an immigration officer to do so, appear before the said officer at such time and place as the officer may direct; and the officer, after such examination as he may consider necessary, shall inform any person whom he considers to be prohibited from entering Malaysia under this Act of his finding, and—

(*a*) if the person arrived by sea and is still aboard the vessel, he shall not disembark in Malaysia, or, if disembarked for the purpose of the examination, he shall return forthwith to the vessel and remain thereon. The master of the vessel shall likewise forthwith be informed in writing by the immigration officer of his finding and the master shall not permit the person to disembark in Malaysia, or, if the person has disembarked, whether for the purpose of examination or otherwise, shall be bound to re-embark him; and

(*b*) if the person arrived by air, he shall not leave the precincts of the airport except for a place approved by the immigration officer, and he shall leave and depart from Malaysia by the first available means in accordance with the instructions of the officer. The captain of the aircraft in which the person arrived shall, if so required by the officer, remove the person from Malaysia by the same aircraft.

(2) Any person who—

(*a*) refuses or neglects to appear before an immigration officer as required by subsection (1) or who leaves the place of examination without or otherwise than in accordance with the authorization of that officer;

(*b*) after being informed by an immigration officer that he is prohibited from entering Malaysia—

(i) he either disembarks in Malaysia or refuses or neglects to return forthwith to his vessel, as the case may be; or

(ii) he leaves the precints of an airport without the permission of the officer, or refuses or neglects to proceed to or remain at a place approved by the immigration officer, or refuses or fails to leave Malaysia in accordance with the instructions of an immigration officer given under subsection (1); or

(*c*) being—

(i) the master of a vessel, permits any person to disembark in Malaysia, or refuses to re-embark any person; or

(ii) the captain of the aircraft in which any person arrived in Malaysia, refuses or neglects to remove the person from Malaysia,

after being informed by an immigration officer that the person is prohibited from entering Malaysia or that the person has refused or neglected to appear before an immigration officer as required by subsection (1) or that he has left the place of examination without or otherwise than in accordance with the authorization of that officer;

shall be guilty of an offence against this Act.

(3) (*a*) Where any person either disembarks in Malaysia or refuses or neglects to return to his vessel, in contravention of this section, an immigration officer may require the person to return to his vessel and may take such steps, including the use of force, as may be reasonably necessary to compel his return, and the master of the vessel shall be bound to re-embark the person and to remove him from Malaysia.

(*b*) The master of a vessel may use such force as may be reasonably necessary to enable him to comply with subsections (1) and (3) (*a*).

(4) Where any person leaves the precincts of an airport in contravention of this section or refuses to leave and depart from Malaysia in accordance with the instructions of the immigration officer given under subsection (1), the immigration officer may take such steps, including the use

of force, as may be reasonably necessary to compel the person to return to the precincts of the airport or to comply with the instructions, as the case may be.

AA719 → (5) (6) & (7) ---

[Ord. 12/59, s. 24 & 25]

25. (*Omitted*).

Examination of persons entering Malaysia by land or at a place other than an authorized airport.

26. (1) Every person who enters Malaysia by land shall enter at an authorized point of entry and shall proceed therefrom by an approved route, prescribed under section 5, to the nearest immigration control post and shall appear before the immigration officer in charge of the post and shall, if required, produce particulars in such form as may be prescribed.

(2) Every person who arrives by sea or air in Malaysia at any place other than an authorized landing place or airport shall forthwith proceed to and appear before the nearest immigration officer.

(3) The immigration officer before whom any person appears in accordance with this section shall if he considers that the person is prohibited from entering Malaysia under this Act inform the person of his finding and the person shall in accordance with the instructions of the immigration officer forthwith leave and depart from Malaysia.

(4) Any person who contravenes or fails to comply with this section shall be guilty of an offence against this Act ~~and shall, on conviction, be liable to a fine not exceeding four thousand dollars or to imprisonment for a term not exceeding one year or to both~~.

D/AA719

Power to send person to depôt for further examination.

27. (1) Where an immigration officer is in doubt as to the right of any person to enter Malaysia, it shall be lawful for the officer to direct the person to an immigration depôt and, in such case, the person shall proceed forthwith to the depôt and shall remain there until permitted to leave by the officer:

Provided that—

D/AA719

(i) the said person shall not, except on the written order of the Minister*, be so detained for any period exceeding seven days; and

(ii) the Director General may, in his discretion, and pending the completion of inquiries regarding the said person, release the person from the immigration depôt on such terms and conditions as the

* *See* Footnote on page 13.

Director General may deem fit, and for that purpose the Director General may issue to the person a Pass in the prescribed form.

(2) Any person who refuses or neglects to comply with directions given by an immigration officer under subsection (1), or who leaves an immigration depôt in contravention of that subsection, shall be guilty of an offence against this Act.

Interrogation of travellers.

28. (1) Any person who arrives in Malaysia or who is about to leave Malaysia shall fully and truthfully answer all questions and enquiries put to him by an immigration officer, or a senior police officer, tending directly or indirectly to establish his identity, nationality or occupation or bearing on any of the restrictions contained in this Act or any absolute or conditional liability on his part to any military, naval or air force service under any state or country whatsoever, and shall disclose and produce to any such officer on demand all documents in his possession relating to those matters.

(2) All such answers and documents shall be admissible in evidence in any proceedings under this Act against the person making, disclosing or producing the same:

Provided that nothing in this section shall be construed as rendering any such answer inadmissible in any other proceedings in which they would otherwise be admissible.

(3) Any person who—

(*a*) refuses to answer any question or inquiry put to him under subsection (1) or knowingly gives any false or misleading answer to any such question or inquiry; or

(*b*) refuses or fails to produce any document in his possession when required so to do under subsection (1) or knowingly produces any false or misleading document,

shall be guilty of an offence against this Act.

Medical examination.

29. For the purpose of exercising his powers and carrying out his functions and duties under this Act, an immigration officer may require any person who desires to enter Malaysia to submit to examination by a Government medical officer.

D/AA719

Immigration officer may give instructions to prevent evasion of examination.

30. (1) An immigration officer may give such instructions as may be reasonably necessary to ensure that no passenger or member of a crew evades examination either of his person or effects.

(2) Any person who without reasonable excuse refuses or fails to comply with any instruction given under subsection (1) shall be guilty of an offence against this Act.

PART V

REMOVAL FROM MALAYSIA

Removal of prohibited immigrants from Malaysia.

31. If during the examination of any person arriving in Malaysia or after such enquiry as may be necessary the person is found to be a prohibited immigrant, the Director General shall, subject to any regulations made under this Act, prohibit the person from disembarking or may in his discretion detain him at an immigration depôt or other place designated by the Director General until an opportunity arises to return him to his place of embarkation or to the country of his birth or citizenship.

Removal of illegal immigrants.

32. (1) Any person who is convicted of an offence under sections 5, 6, 8 or 9 shall be liable to be removed from Malaysia by order of the Director General:

Provided that no citizen convicted of an offence under section 5 shall be ordered to be removed from Malaysia under this subsection.

(2) (*Repealed*).

AA719

Removal of persons unlawfully remaining in Malaysia.

33. (1) Where the presence of any person in Malaysia is unlawful by reason of section 15 or 60 the person shall, whether or not any proceedings are taken against him in respect of any offence against this Act ~~under section 15~~, be ~~liable to be~~ removed from Malaysia by order of the Director General.

D/AA719

(2) Any person in respect of whom an order of removal has been made under subsection (1) may appeal to the Minister* in such manner and within such time as may be prescribed:

Provided that there shall be no appeal under this subsection against an order of removal under subsection (1) made in respect of any person whose presence in Malaysia is unlawful under section 15 or 60 by reason of the expiry of any Pass relating to or issued to him.

Sub. AA719

* *See* Footnote on page 14.

34. (1) Where any person is ordered to be removed from Malaysia under this Act, ~~it shall be lawful for the Director General to order the person to~~ be detained in custody for such period as may be necessary for the purpose of making arrangements for his removal: Detention of persons ordered to be removed.

Provided that any person detained under this subsection who appeals under section 33 (2) against the order of removal may, in the discretion of the Director General, be released, pending the determination of his appeal, on such conditions as to furnishing security or otherwise as the Director General may deem fit.

(2) Subject to the determination of any appeal under section 33, any person who is ordered to be removed from Malaysia may be placed on board a suitable vessel or aircraft by any police officer or immigration officer, and may be lawfully detained on board the vessel or aircraft, so long as the vessel or aircraft is within the limits of Malaysia.

(3) Any person who is detained in custody in pursuance of an order made by the Director General under subsection (1) may be so detained in any prison, police station or immigration depôt, or in any other place appointed for the purpose by the Director General.

35. Any person reasonably believed to be a person liable to removal from Malaysia under this Act may be arrested without warrant by any immigration officer generally or specially authorized by the Director General in that behalf or by a senior police officer, and may be detained in any prison, police station or immigration depôt for a period not exceeding thirty days pending a decision as to whether an order for his removal should be made. Power to arrest person liable to removal.

36. Any person who, having been removed or otherwise lawfully sent out of Malaysia, enters or resides in Malaysia without the permission in writing of the Director General shall be guilty of an offence against this Act and shall, on conviction, be liable to a fine not exceeding four thousand ~~dollars~~ or to imprisonment for a term not exceeding two years or to both, and shall, in addition to any penalty for the offence, be liable to be removed or again removed as the case may be from Malaysia. Unlawful return after removal.

37. (*Repealed*).

PART VI

MISCELLANEOUS

Performance of duties of immigration officers.

38. (1) Immigration officers shall perform the duties imposed on them by this Act, and shall also perform such duties as are required of them by the Director General, either directly or through any other officer; and no action taken by any such officer under or for any purpose of this Act shall be deemed to be invalid or unauthorized by reason only that it was not taken by the officer specially appointed or detailed for the purpose.

F.M.S. Cap. 45, Sabah 3/59, Swk. Cap. 57.

(2) Every immigration officer shall be deemed to be a public servant within the meaning of the Penal Code.

Authority of immigration officer to arrest and prosecute.

39. (1) Every immigration officer shall have the authority and powers of a police officer to enforce any of the provisions of this Act relating to arrest, detention or removal.

(2) Every immigration officer shall have authority to appear in court and conduct any prosecution in respect of any offence against this Act.

Power to summon witnesses, etc.

40. (1) The Director General may, for the purpose of any inquiry under this Act, summon and examine witnesses on oath or affirmation, and may require the production of documents relevant to the inquiry.

(2) Any person summoned as a witness under subsection (1) who without reasonable excuse fails to attend at the time and place mentioned in the summons, or who, having attended, refuses to answer any question that may lawfully be put to him or to produce any document which it is in his power to produce, shall be guilty of an offence against this Act.

Duty of police officers to execute orders.

41. All police officers shall, when so requested by a senior immigration officer, receive and execute according to the tenor thereof any written order of the Director General, and any warrant of the Director General for the arrest, detention or removal of any person made under this Act.

Restriction of discharge of member of crew.

42. (1) When any seaman is about to be, or is discharged or paid off in Malaysia, the master, owner, charterer or agent shall so notify the Director General.

(2) No member of a crew who has been discharged or paid off shall be left in Malaysia unless either—

(*a*) he is a citizen; or

(*b*) he is in possession of a valid Permit or Pass.

(3) Where there has been any contravention of subsection (2), the master, captain, owner, charterer, agent or consignee of the vessel or aircraft in which the person concerned was employed shall be liable for the maintenance of that person and for the cost of his repatriation to his place of birth or citizenship or, if the master, captain, owner, charterer, agent or consignee so elects, to such other place as may be approved by the Director General.

Signing on or bringing as one of the crew any person with intent to land contrary to this Act.

43. Any transportation company and any person, including the master or captain and the owner of a vessel or aircraft arriving in Malaysia, who has ~~knowingly~~ signed on the ship's articles or brought to Malaysia as a member of the crew of the vessel or aircraft any person with intent to permit the person to enter Malaysia contrary to this Act, or who represents to an immigration officer that any such person is a bona fide member of the crew of the vessel or aircraft, shall be guilty of an offence against this Act and shall, on conviction, be liable to a fine, in respect of each such person, not exceeding ~~four~~ five thousand and not less than ~~two hundred~~ one thousand ~~dollars~~. ringgit

Security to prevent unlawful landing.

44. (1) An immigration officer may demand security, whether by deposit or otherwise, from the master, captain, owner, charterer or agent or consignee of any vessel or aircraft from which he has reasonable grounds to believe that any person is about to disembark in or enter Malaysia in contravention of this Act, and may refuse to release the vessel or aircraft from examination until the security is furnished.

(2) The Director General may, if satisfied that any person has disembarked in or entered Malaysia from any vessel or aircraft, in respect of which security has been furnished under subsection (1), in contravention of this Act, direct the forfeiture of the security or any part thereof:

Provided that the Director General shall not direct the forfeiture of any security under this subsection if he is satisfied that the master, captain, owner, charterer, agent or consignee took every reasonable precaution to prevent any person from so disembarking in or entering Malaysia.

(3) Where an immigration officer in lieu of requiring a deposit under subsection (1) requires security by a bond with or without sureties then the bond shall be in the prescribed form.

Reports as to persons failing to continue their journey.

45. (1) Where any through passenger on or member of the crew of any vessel or aircraft fails to continue his journey in that vessel or aircraft in circumstances from which it may reasonably be inferred that the passenger or member of the crew has remained in Malaysia, the master of the vessel or the captain of the aircraft, as the case may be, shall notify an immigration officer or a senior police officer of the failure of the passenger or member of the crew to continue his journey.

(2) Any master or captain who fails to comply with subsection (1) shall be guilty of an offence against this Act.

Repatriation.

46. (1) Any person residing in Malaysia who—

(*a*) is not a citizen;

(*b*) is by reason of destitution, infirmity or mental incapacity, unable to obtain employment or to support himself and his family (if any);

(*c*) is unable to pay the cost of his passage and of the passages of his family (if any) to the country of his birth or citizenship; and

(*d*) is or is likely to become a charge upon the public or on a charitable institution,

may apply to the Director General for the repatriation of himself and his family (if any) at the cost of the Government.

(2) Upon any such application, if the Director General is satisfied, after such inquiry as he deems necessary, that the person has or is about to become a charge on the public or on a charitable institution and is unable to pay the cost of the repatriation of himself and his family, if any, and that no government, organisation, company or person is liable or willing to pay the cost of repatriation, the Director General may authorize the payment of the cost subject to the condition specified in subsection (3).

(3) Any person repatriated at the cost of the Government shall enter into an undertaking, in such form as may be prescribed, that he will not return to Malaysia without the sanction in writing of the Director General. Any such sanction shall be conditional upon the person refunding to

the Director General all costs and charges incurred in the repatriation of that person and his family, if any, and shall be subject to such other conditions as the Director General may deem expedient.

(4) Any person who has been repatriated at the cost of the Government under this section who enters or attempts to enter Malaysia without the sanction of the Director General under subsection (3), or who having entered Malaysia with such sanction, fails or neglects to comply with any condition upon which the sanction was given, shall be guilty of an offence against this Act.

Masters, captains, owners, etc., liable for expenses.

47. If any person—

(*a*) enters Malaysia from any vessel or aircraft contrary to this Act; or

(*b*) disembarks from any vessel or aircraft on which he has been re-embarked or to which he has been returned under sections 19, 20 or 24,

the master or captain and the owner, charterer and agent thereof shall be jointly and severally liable for all expenses incurred by the Government in respect of the detention and maintenance of that person and his removal from Malaysia and such expenses shall be recoverable as a debt due to Government from the master or captain and the owner, charterer and agent of the vessel or aircraft jointly and severally.

Subs. by A1985 Obligation to afford free passage.

48. (1) When an order of removal is made under this Act in respect of any person who has entered Malaysia contrary to this Act, and such person was brought to Malaysia in a vessel or aircraft, the master of the vessel or the captain of the aircraft, and also the master or captain of any vessel or aircraft belonging to the same owners or chartered by the same charterers, shall, if required in writing by the Director General, receive the person on board his vessel or aircraft and afford him free of charge a passage to the port or place at which the person embarked and proper accommodation and maintenance during the voyage or flight:

Provided that no such master or captain shall be liable as aforesaid unless the order of removal has been made by the Director General within twelve months from the date upon which the person entered Malaysia.

(2) The master of any vessel or the captain of any aircraft, as the case may be, who fails to comply with this section shall be guilty of an offence against this Act.

Power to detain vessel.

49. (1) The Director General may by writing under his hand authorize any Port Officer to detain any vessel in connection with which an offence against this Act is reasonably believed to have been or to be about to be committed, and the vessel may then be detained either at the place where it is found or at any place to which the Director General may order it to be brought. The Director General shall give notice to the master or owner or charterer or agent of the vessel of the detention of the vessel.

(2) For the purposes of the detention and other lawful dealing with the vessel the Port Officer shall have power to muster the crew and may, if he considers it necessary so to do, place a police guard on board.

(3) The detention shall be for safe custody only, and shall cease if a bond with two sufficient sureties to the satisfaction of the Director General be given by the master, owner, charterer or agent of the vessel for the payment of any fine, costs and charges incurred under this Act in respect of any offence or default thereunder.

(4) If default is made in the payment of any such fine, costs or charges the Port Officer may seize the vessel and the vessel shall be declared forfeited to the Government by order of a court upon the application of the Attorney General. Any vessel so forfeited shall be sold.

(5) The proceeds of sale of a vessel under this section shall be applied first in payment of any fine, costs or charges incurred under this Act and of any costs incurred in and about the sale and the proceedings leading thereto and the balance shall be paid to the owner of or other person lawfully entitled to the vessel before forfeiture and sale.

Power to seize, detain and forfeit vessels of under seventy-five tons.

49A. (1) Any vessel below seventy-five tons which is used or in respect of which there is reasonable cause to suspect that it has been or that it is about to be used in the commission of any offence against this Act may be seized and detained by the Director General or any senior immigration officer, authorized in that behalf by the Director General in writing under his hand, at any place either on land or in the territorial waters of Malaysia.

(2) The seizing officer shall forthwith give notice in writing of the seizure and the grounds thereof to the owner, charterer or agent of the vessel so seized or detained, either by delivering the notice to him in person or by post at his place of office or abode, if known:

Provided that no notice shall be required to be given where the seizure or detention is made in the presence of or with the knowledge of the offender or the owner or his agent, as the case may be.

(3) Any vessel liable to seizure or detention under sub-section (1) shall be liable to forfeiture.

(4) An order for the forfeiture or for the release of any vessel liable to forfeiture under this section shall be made by the court before which the prosecution with regard thereto has been held.

(5) An order for the forfeiture of ~~a vessel~~ shall be made if it is proved to the satisfaction of the court that an offence against this Act has been committed and that the vessel was used in the commission of the offence, notwithstanding that no person may have been convicted of the offence.

(6) The Director General may sell any vessel forfeited under this section. The proceeds of the sale shall, after payment of the expenses of the sale, be applied in payment of any fine, costs, or charge incurred under this Act and any balance remaining shall be paid into the Consolidated Fund.

Powers of interrogation.

50. (1) ~~Any person~~ reasonably believed to be a person liable to removal from Malaysia under this Act may be questioned by an immigration officer, and the person shall fully and truthfully answer all questions and enquiries put to him by the immigration officer tending directly or indirectly to establish his identity, nationality, ~~or~~ occupation or bearing on any of the restrictions contained in this Act, and shall disclose and produce to the officer on demand all documents in his possession relating to the matters.

(2) All such answers and documents shall be admissible in evidence in any proceedings under this Act against the person making or producing the same:

Provided that nothing in this section shall be construed as rendering any such answer inadmissible in any other proceedings in which they would otherwise be admissible.

Powers of search and arrest.

51. (1) (*a*) Any senior immigration officer;

(*b*) any senior police officer;

(*c*) any other police officer generally or specially authorized in that behalf by the Director General; and

(*d*) any officer of the Customs Department acting under the instructions of a senior immigration officer,

may without a warrant and with or without assistance—

(i) enter and search any premises; or

(ii) stop and search any vessel, vehicle or person, or search any aircraft, whether in a public place or not,

if he has reason to believe that any evidence of the commission of an offence against this Act is likely to be found on such premises or person or in such vessel, vehicle or aircraft, and may seize any evidence so found.

(2) No woman shall be searched under this section except by a woman.

(3) (*a*) Any police officer, immigration officer or Customs Officer may arrest without warrant any person who he reasonably believes has committed an offence against this Act.

(*b*) The powers of arrest under paragraph (*a*) may—

(i) in the case of West Malaysia, be conferred by the Minister, after consultation with the Government of the State concerned, in areas to be notified in the State *Gazette*, on a Penghulu or Penggawa;

(ii) in the case of Sabah, be conferred by the Director General, with the approval of a Resident, in areas to be notified in the State *Gazette*, on any native officer within the meaning of the Criminal Procedure Code of Sabah; 4/59.

(iii) in the case of Sarawak, be conferred by the Director General, with the approval of a Resident, in areas to be notified in the State *Gazette*, on any Tua Kampong, Tuai Rumah or any Native or Chinese Headman.

(4) Where any person is arrested pursuant to subsection (3) by an immigration officer or by an officer of the Customs Department or by a person authorized under subsection (3) (*b*), the person making the arrest shall comply with, as the case may be—

(i) section 28 of the Criminal Procedure Code of the Federated Malay States; *Cap. 6.*

(ii) sections 35 and 36 of the Criminal Procedure Code of the Straits Settlements; *Cap. 21.*

(iii) section 33 of the Criminal Procedure Code of Sabah; or *4/59.*

(iv) section 33 of the Criminal Procedure Code of Sarawak, *Cap. 58.*

as if he were a police officer.

52. The provisions of the Registration of Criminals and Undesirable Persons Act, 1969, relating to persons ordered to be expelled from Malaysia shall apply to persons ordered to be removed from Malaysia under this Act and for the purpose of so applying that Act an immigration officer shall be deemed to be a police officer. *Act 7.*

Registration of particulars for purposes of identification.

53. In any proceedings under this Act or at the hearing of any charge for an offence against this Act any counterfoil or counterpart of any Permit, Pass, Internal Travel Document, Certificate or other document issued under this Act and purporting to be signed by a senior immigration officer may be produced in evidence without further proof and shall be prima facie evidence of the facts therein stated and shall unless the contrary be proved be presumed to be a true statement of the relevant contents of the Permit, Pass, Internal Travel Document, Certificate or other document to which it relates.

Counterfoils, etc., to be prima facie evidence.

54. (1) The Minister may make regulations for all or any of the following purposes:

Regulations.

(*a*) prescribing anything which is to be or may be prescribed under this Act;

(*b*) prescribing the forms to be used for the purposes of this Act;

(*c*) prescribing—

(i) the period for which Permits shall be valid;

(ii) the terms and conditions subject to which any person may be granted a Permit and the authority who may issue Permits;

(iii) the terms and conditions subject to which any person may be granted a Pass entitling him to enter and remain temporarily within Malaysia, the period for which any such Pass may be granted, the classes of Passes and the authority who may issue the Passes; and

(iv) the terms and conditions subject to which any person may be granted a Certificate of Status entitling him to enter Malaysia, the period for which such Certificate may be granted and the authority who may issue the Certificates;

(*d*) providing for the payment and recovery of any expenses incurred by the Government in connection with the detention, maintenance, medical treatment and removal from Malaysia of any person under this Act;

(*e*) prescribing the place where, the person to whom and the manner in which application to enter Malaysia shall be made;

(*f*) prescribing the procedure to be followed by persons entering Malaysia;

(*g*) prescribing the procedure to be followed by authorities in the exercise of their functions under this Act;

(*h*) governing the procedure to be followed and the fees and costs to be paid on any appeal;

(*i*) prescribing the deposit or security to be made or given by or in respect of any person granted an Entry Permit, ~~Re-entry Permit~~ or Pass and the conditions subject to which the deposit or security may be forfeited;

(*j*) prescribing the fees to be charged upon the issue of any Entry Permit, ~~Re-entry Permit~~, Certificate or Pass; ~~and~~

(*k*) (*Omitted*);

(*l*) generally for the better carrying into effect of this Act.

(2) All regulations made under this section shall be published in the *Gazette* and shall be laid before the Dewan Ra'ayat as soon as possible after such publication. If a resolution of the Dewan Ra'ayat is passed within the next subsequent three months after any such regulation is

laid before it disapproving the regulation or any part thereof, the whole regulation or such part thereof, as the case may be, shall thenceforth cease to have effect but without prejudice to the validity of anything previously done thereunder.

Power to exempt.

55. (1) Notwithstanding anything contained in this Act, the Minister may by order exempt any person or class of persons, either absolutely or conditionally, from all or any of the provisions of this Act and may in any such order provide for any presumptions necessary in order to give effect thereto.

(2) Every order made under this section which relates to a class of persons shall be published in the *Gazette*.

Offences

56. (1) Any person who—

(*a*) attempts unlawfully to enter Malaysia;

(*b*) abets any person to enter Malaysia in contravention of this Act;

(*c*) (*Repealed*);

(*d*) ~~knowingly~~ harbours any person whom he knows or has reasonable grounds for believing to have acted in contravention of this Act;

(*e*) (*Repealed*);

(*f*) makes or causes to be made any false report, false statement or false representation in connection with any obligation imposed by this Act;

(*g*) resists or obstructs, actively or passively, any immigration officer in the execution of his duty;

(*h*) without lawful excuse hinders or obstructs any removal under this Act;

(*i*) gives, sells or parts with possession of any Entry ~~or Re-entry~~ Permit, Pass, Internal Travel Document or Certificate in order that it may be used in contravention of paragraph (*j*);

(*j*) uses any Entry ~~or Re-entry~~ Permit, Pass, Internal Travel Document or Certificate issued to any other person as if it had been lawfully issued to himself;

(*k*) obtains or attempts to obtain for himself or for any other person by making a false statement any Entry ~~or Re-entry~~ Permit, Pass, Internal Travel Document or Certificate; or

(*l*) uses or without lawful authority has in his possession any forged, unlawfully altered or irregular Entry ~~or Re-entry~~ Permit, Pass, Internal Travel Document or Certificate or other document issued under this Act, or any Permit, Pass, Internal Travel Document or Certificate or other document so issued on which any endorsement has been forged or unlawfully altered,

~~shall be guilty of an offence against this Act.~~

(2) Any person unlawfully entering or re-entering or attempting unlawfully to enter or re-enter Malaysia or unlawfully remaining in Malaysia shall whether or not any proceedings are taken against him in respect of the offence be liable to be removed from Malaysia by order of the Director General.

(3) Where the master of any vessel is charged with an offence against this Act, the clearance of the vessel may be refused until the charge has been heard and the fine imposed, if any, has been paid.

(4) Where in any proceedings under this Act it is proved that the defendant has failed to produce on demand by an immigration officer or a police officer—

(*a*) any valid Permit, Pass or Certificate issued to him under this Act;

(*b*) (*Omitted*);

(*c*) any other document accepted by the Director General as evidence that the defendant has entered or remained in Malaysia lawfully; or

(*d*) any other evidence showing to the satisfaction of the Director General that the defendant is exempted from section 6 (1),

it shall be presumed, until the contrary is proved, that he has, as the case may be, entered or re-entered or remained in Malaysia unlawfully.

General penalty.

57. Any person guilty of an offence against this Act for which no special penalty is provided shall, on conviction, be liable to a fine not exceeding ~~two thousand dollars or to imprisonment for a term not exceeding six months~~ or to both.

58. (1) All offences against this Act shall be cognizable— Trial of offences.

(*a*) in West Malaysia, by a Sessions Court and by a Court of a First Class Magistrate; and

(*b*) in East Malaysia, by a Court of a First Class Magistrate.

(2) No prosecution shall be instituted in respect of any offence against this Act without the sanction in writing of the ~~Director General or of the Public Prosecutor or his Deputy~~:

Provided that nothing herein shall prevent any police officer or immigration officer from exercising his powers to arrest or detain any person under this Act.

(3) In West Malaysia any Sessions Court or Court of a First Class Magistrate and in East Malaysia any Court of a First Class Magistrate may notwithstanding anything in the Subordinate Courts Act, 1948, the Sabah Criminal Procedure Code or the Sarawak Criminal Procedure Code, as the case may be, impose the full punishment prescribed for any offence except that the Court of a Magistrate of the First Class in West Malaysia and the Court of a Magistrate other than a Stipendiary Magistrate in East Malaysia shall not impose a sentence of imprisonment for a term exceeding ~~twelve months~~.

Act 92.
Sabah 4/59.
Swk. Cap. 58.

59. (*Omitted*).

60. The Federation of Malaya Immigration Ordinance, 1952, and, subject to section 74, the Sabah Immigration Ordinance, 1962, and the Sarawak Immigration Ordinance are hereby repealed:

Repeal and saving.
F.M. 68/52.
Sabah 1/62.
Swk. Cap. 15.

Provided that—

(*a*) any person in Malaysia whose presence is unlawful under the Ordinances hereby repealed shall be deemed to be unlawfully in Malaysia for the purposes of this Act;

(*b*) any person in Malaysia who is authorized to remain temporarily within Malaysia under any written law in force immediately prior to the coming into force of this Act shall be deemed to be the holder of a Pass issued under this Act to enter and remain temporarily within Malaysia for the period for which he is authorized to remain in Malaysia under the provisions of that law; and

(*c*) any authority to enter Malaysia granted under any law in force immediately before the coming into operation of this Act and valid at that date shall be deemed to be a valid Permit or Pass, as the case may require, issued under this Act but subject to any limitations imposed by that law.

[Ord. 12/59, s. 60 & Act 27/63, s. 3 (1)]

61. (*Repealed*).

PART VII

SPECIAL PROVISIONS FOR EAST MALAYSIA

Chapter 1—General

Interpretation.

62. In this Part unless the context otherwise requires—

"East Malaysian State" means the State of Sabah or Sarawak, as the case may require, and "East Malaysian States" shall be construed accordingly;

"Director" means the Director of Immigration, Sabah, or the Director of Immigration, Sarawak, as the case may require;

"State Authority", for any purpose relating to an East Malaysian State, means the Chief Minister of the State or such person holding office in the State as the Chief Minister may designate for the purpose by notification in the State *Gazette*. [Act 27/63, s. 12]

Delegation of powers, *56/56*.

63. Parts II and III of the Delegation of Powers Ordinance, 1956, so far as relevant for the purposes of this Act, shall for those purposes extend to East Malaysia whether or not so extended for any other purpose. [Act 27/63, s. 3 (3)]

Chapter 2—Special Provisions

Application of immigration law to each East Malaysian State as separate unit.

64. (1) Without prejudice to the general operation of Parts I to VI (in East Malaysia as in West Malaysia), as a general law for Malaysia as a whole, those Parts shall also have effect, subject to and in accordance with this Chapter, as a special law for each of the East Malaysian States as if for any reference to Malaysia (except in a reference to a Government in Malaysia) there were substituted a reference to the East Malaysian State.

(2) Regulations under section 54 and orders under section 55 (exemptions), may make special provision as regards an East Malaysian State for the purposes of Parts I to VI as a special law for that State; and no such regulations shall be made or have effect so as to prejudice the powers conferred by this Chapter on the authorities of the State.

(3) There shall be a Director for each of the East Malaysian States who, subject to sections 3 (2) and 4, shall have all such authority to exercise the powers and discretions vested in the Director General by Parts I to VI, and discharge the duties required to be discharged by him, as may be necessary for the purpose of giving effect to those Parts as a special law for the State.

(4) In the operation of Parts I to VI as a special law for an East Malaysian State, those Parts shall have effect subject to the following modifications:

(*a*) section 9A (which confers on the ~~Minister~~ Director General a general power to limit entry into Malaysia) and section 46 (which relates to repatriation) shall not apply; and

(*b*) references to a Permit or Pass shall mean a Permit or Pass to enter the East Malaysian State.

(5) Notwithstanding anything in subsections (1) to (4), the powers and discretions vested in the Director by Parts I to VI, as a special law for an East Malaysian State shall not be exercised by him so as to exclude or remove from the East Malaysian State a person entitled to be in Malaysia outside the East Malaysian State, except with a view to making effective the powers conferred by this Chapter on the authorities of the State; and no such person shall in the exercise of those powers be required to leave and depart from Malaysia nor, without his consent, be removed from Malaysia. [Act 27/63, s. 4]

General powers of State authority.

65. (1) In exercising his powers under Parts I to VI as a special law for an East Malaysian State the Director shall comply with any directions given to him by the State authority, being directions—

(*a*) requiring him not to issue a Permit or Pass, or a specified description of Permit or Pass, to any specified person or class of persons, or to do so only for a specified period or on specified terms and conditions;

(*b*) restricting the making of endorsements on a Permit, Pass or Certificate; or

(*c*) requiring him to ~~exercise any discretion vested in him to~~ cancel any Permit, Pass or Certificate issued to a specified person, or to deem a specified person to be an undesirable immigrant, or to declare that a specified person's presence in the East Malaysian State is unlawful, or to order a specified person's removal from the State.

(2) Where the Director takes any action in obedience or purported obedience to any directions given under subsection (1), and there is an appeal to the Minister against that action, the Minister shall not allow the appeal without the concurrence of the State authority.

(3) An order under section 55 shall not have effect as a special law for an East Malaysian State, except so far as its provisions are by the same or a subsequent order applied to those purposes with the concurrence of the State authority. [Act 27/63, s. 5]

Restriction on citizen's right of entry into an East Malaysian State.

66. (1) Subject to subsection (2) and to sections 67 and 68, a citizen shall not be entitled to enter an East Malaysian State without having obtained a Permit or Pass in that behalf unless—

(*a*) he belongs to the East Malaysian State;

(*b*) he is a member of the Federal Government, or of the Executive Council or Legislative Assembly of the East Malaysian State (or of any Council having similar functions in the State);

(*c*) he is a judge of the Federal Court or of the High Court in Borneo, or is a person designated or nominated to act as such, or he is a member of any Commission or Council established by the Federal Constitution or by the Constitution of the East Malaysian State; or

(*d*) he is a member of any of the public services of the Federation, or of the public service of the East Malaysian State, or of a joint public service serving the East Malaysian State, or is seconded to any such service.

(2) Where a citizen is entitled to enter the East Malaysian State under subsection (1), the citizen's children under the age of eighteen years and (if he is a man) his wife, if entering the East Malaysian State with, or to be with, the citizen, shall not be required by subsection (1) to obtain a Permit or Pass in that behalf.

(3) Where a citizen is not entitled to enter an East Malaysian State under this section, Parts I to VI, in their operation as a special law for the East Malaysian State shall apply to him as if he were not a citizen:

Provided that a citizen arriving in Malaysia in the East Malaysian State or in the other of the East Malaysian States, and proceeding to a part of Malaysia which he is entitled to enter, shall be entitled to such Pass as is reasonably required to enable him to do so.

(4) The burden of proof that a person is entitled to enter the East Malaysian State under this section shall lie on him. [Act 27/63, s. 6]

Right to enter East Malaysian State for exercise of political rights.

67. Section 66 (1) shall not have effect in relation to a citizen entering the East Malaysian State for the sole purpose of engaging in legitimate political activity; but the burden of proof that a person is entitled to enter the East Malaysian State under this section shall lie on him. [Act 27/63, s. 7]

Right to enter East Malaysian State for purposes of Federal Government.

68. (1) Section 66 (1) shall not have effect in relation to any citizen whose entry into the East Malaysian State is temporarily required by the Federal Government in order to enable that Government to carry out its constitutional and administrative responsibilities.

(2) The Minister shall from time to time notify the Director of the persons or classes of persons whose entry into an East Malaysian State is required as aforesaid, and shall give him such particulars as are necessary to enable him to discharge his functions in relation to those persons; and in relation to an East Malaysian State subsection (1) shall not be taken to apply to any person unless he is a person, or belongs to a class of persons, so notified to the Director in relation to that State.

(3) The Minister shall not give any notification to the Director under subsection (2) except after consultation with the State Authority. [Act 27/63, s. 8]

Entry from outside East Malaysia for State purposes.

69. (1) The powers of the Director under Parts I to VI shall be so exercised as to allow the entry into an East Malaysian State of any person if his entry is required by the Government of the State for State purposes.

(2) The State authority shall from time to time notify the Director of any person whose entry is required as aforesaid, giving such particulars as are necessary to enable the Director to discharge his functions in relation to that person; and subsection (1) shall not be taken to apply to any person unless he is a person so notified to the Director.

(3) The State authority shall not give any notification to the Director under subsection (2) except after consultation with the Minister; and if the Minister considers it desirable in the national interest for entry to be refused to the person in question, and so informs the State authority, the notification shall not be given. [Act 27/63, s. 9]

Temporary protection for potential citizens in an East Malaysian State.

70. (1) As regards entry into and residence in an East Malaysian State and all matters connected therewith a person entitled in the State to the benefit of this section shall be treated for the purposes of Parts I to VI as if he were a citizen.

(2) Subject to this section, a person shall be entitled in an East Malaysian State to the benefit of the section if—

(*a*) on Malaysia Day he is ordinarily resident in the State, and in the ten years immediately preceding that day he has resided in the territories comprised in the East Malaysian States and Brunei for periods which amount in the aggregate to not less than seven years; and

(*b*) immediately before Malaysia Day under the immigration law of the territories comprised in the State, he would as being a Commonwealth citizen (or if not a Commonwealth citizen, then in the case of Sabah as having been before November 1931 born in North Borneo) have been entitled to enter those territories without having obtained a permit or pass.

(3) A person shall not be entitled to the benefit of this section after the beginning of September, 1965:

Provided that where before September, 1965, a person entitled in an East Malaysian State to the benefit of this section makes an application to be registered as a citizen and the application is not disposed of before the beginning of that month, he shall continue to be so entitled until the application is disposed of.

(4) So long as a person is entitled in an East Malaysian State to the benefit of this section that person's children under the age of twenty-one years and (if he is a man) his wife shall as regards entry into and residence in the State and all matters connected therewith be treated for the purposes of Parts I to VI as if they were citizens.

(5) For the purpose of determining whether subsection (2) (*b*) is satisfied in the case of any person, any question which under the immigration law of the territories comprised in an East Malaysian State would have fallen to be determined by an authority or officer of the Government of those territories shall be determined by the Minister.

(6) A person who has left an East Malaysian State on or after Malaysia Day shall not be entitled in the State to the benefit of this section if the Minister* is satisfied that his residence in the State would be prejudicial to public security.

(7) This section shall not entitle any person for the purpose of reaching an East Malaysian State to enter or remain in any part of Malaysia outside the State otherwise than in accordance with Parts I to VI, as those Parts apply to persons who are not citizens; but a person entitled by virtue of this section to enter an East Malaysian State shall be entitled to receive such Pass to enter a part of Malaysia outside the State as is reasonably required to enable him to do so.

(8) For persons entitled to enter an East Malaysian State by virtue of this section regulations under section 54 may, as respects Certificates of Status and other matters, make special provision different from that made for citizens.

(9) For purposes of this section residence shall be calculated in like manner as for the purpose of registration as a citizen, and "child" includes in relation to a woman, an illegitimate child. [Act 27/63, s. 10]

Persons to be treated as belonging to East Malaysian State.

71. (1) For purposes of section 66, a citizen shall be treated as belonging to an East Malaysian State if—

(*a*) he is or has within the preceding two years been a permanent resident in the East Malaysian State; or

* *See* Footnote on page 13.

(*b*) he became a citizen in any of the following ways, that is to say—

(i) by operation of law on Malaysia Day in respect of his being a citizen of the United Kingdom and Colonies ordinarily resident in the State;

(ii) by operation of law on or after Malaysia Day in respect of his birth in Malaysia and of one of his parents being at the time of the birth a permanent resident in the East Malaysian State; or

(iii) by registration in respect of his being on Malaysia Day ordinarily resident in the East Malaysian State.

(2) Subject to subsection (3) a person shall not be treated for purposes of this section—

(*a*) as becoming a permanent resident in an East Malaysian State after not being one, until he has in a period not exceeding five years been resident in the State for periods amounting to three years; or

(*b*) as being a permanent resident in an East Malaysian State at any time when under federal law he requires permission to reside there and has not got permission to do so granted without limit of time.

(3) Subsection (2) (*a*) shall not prevent a woman being treated as a permanent resident in an East Malaysian State at any time when she is married to a permanent resident in the State and is ordinarily resident there with him.

(4) In determining for the purposes of this section whether a person is or was at any time a permanent resident in an East Malaysian State no account shall be taken of any period of residence in the State while he is there by virtue of section 67 or 68; but a period of residence or of permanent residence shall not for purposes of this section be treated as interrupted or terminated—

(*a*) by a period of absence from the State of less than six months;

(*b*) by a period of absence from the State for purposes of education of such kind, in such country and for such time as may from time to time be either generally or specially approved by the State authority;

(*c*) by a period of absence from the State on duty in the service of the Federation or of any State, where the absence is not inconsistent with the essential continuity of the residence in the State; or

(*d*) by a period of absence from the State for any other cause allowed generally or specially by the State authority.

(5) A person who for purposes of Parts I to VI is for the time being treated under section 70 as a citizen in respect of his being on Malaysia Day ordinarily resident in an East Malaysian State shall for purposes of section 66 be treated as belonging to that State.

(6) Any authority empowered under Parts I to VI in its operation as a special law for an East Malaysian State to issue Certificates of Status showing that a person belongs to that State shall (unless the authority is an authority of the State) notify the State authority of any application for the issue of such a Certificate, and if so required by the State authority consult with that authority before issuing the Certificate. [Act 27/63, s. 11]

Chapter 3—Supplementary

Travel documents required.

72. (1) Subject to any exemption granted under section 55 every person entering West Malaysia or an East Malaysian State from a place in Malaysia outside West Malaysia or outside that State, as the case may be, shall produce to the immigration officer either an internal travel document issued under section 73 or the like passport, or other travel document, having the like visa (if any), as would be required by the law for the time being in force with respect to passports if he were entering from a place outside Malaysia.

(2) A person shall be guilty of an offence against this Act if he enters West Malaysia or an East Malaysian State contrary to subsection (1), or attempts to do so, or abets any person to do so. [Act 27/63, s. 13]

Provision for internal travel documents.

73. (1) The Minister shall make arrangements for the issue to citizens in such circumstances and on such conditions as may be prescribed, of special travel documents for travel within Malaysia; and any such document shall be known as an internal travel document, and shall not be deemed to be a passport within the meaning of any law relating to passports. [Act 27/63; s. 14]

(2) (*Omitted*).

Continuation of State subsidiary legislation. *Sabah 1/62. Swk. Cap. 15.*

74. (1) The repeal of the Sabah Immigration Ordinance, 1962, and the Sarawak Immigration Ordinance by section 60 shall not affect the operation of any subsidiary legislation then having effect under those laws; but any such subsidiary legislation shall continue to have the like effect, as nearly as may be, for any corresponding purpose of this Act, until it is superseded by any regulations or order made under this Act.

(2) No such subsidiary legislation shall be so superseded in whole or in part without the concurrence of the Chief Minister of the State. [Act 27/63, s. 15]

LAWS OF MALAYSIA

Act 155

IMMIGRATION ACT, 1959/63

(Revised—1975)

Particulars under section 7 (ii) and (iii) of the Revision of Laws Act, 1968 (Act 1)

LIST OF AMENDMENTS

Amending law	Short title	In force from
Act 6/1961 ...	Immigration (Amendment) Act, 1961	1-4-1961
L.N. 226/1963 ...	Immigration (Transitional Provisions) Order, 1963	16-9-1963
Act 27/1963 ...	Immigration Act, 1963	16-9-1963
Act 15/1965 ...	Immigration (Amendment) Act, 1965	16-9-1963
Act 7/1966 ...	Immigration (Amendment) Act, 1966	27-1-1966
P.U. (A) 179/1969	Essential (Immigration) (Borneo States) Regulations, 1969	13-6-1969
P.U. (A) 238/1969	Essential (Modifications of Immigration Laws) Regulations, 1969	15-7-1969
P.U. (A) 404/1969	Essential (Modifications of Immigration Laws) (Amendment) Regulations, 1969	15-7-1969
P.U. (B) 324/1970	Notification under section 3 of the Titles of Office Ordinance, No. 22 of 1949	1-1-1971
Act A82	Immigration (Amendment) Act, 1971	24-9-1971
P.U. (A) 209/1971	Notification under section 3 of the Titles of Office Ordinance, No. 22 of 1949	25-6-1971
Act A191 ...	Immigration (Amendment) Act, 1973	30-3-1973

LIST OF LAWS OR PARTS THEREOF SUPERSEDED

No.		Title
12 of 1959	...	Immigration Ordinance, 1959
27 of 1963	...	Immigration Act, 1963
F.L.N. 226 of 1963		Immigration (Transitional Provisions) Order, 1963—paragraphs 3 and 4

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